

Die Martis, 14^o Decembris, 1897.

Whereas Counsel were heard as well on Tuesday the 10th as Thursday the 12th, Monday the 16th, and Tuesday the 17th days of December 1895, upon the Petition and Appeal of Thomas Francis Allen, of 19, Birchfield Street, East India Dock Road, Middlesex, the London Delegate of the United Society of Boiler Makers and Iron Ship Builders, praying, That the matter of the Order set forth in the Schedule thereto, namely, an Order of Her Majesty's Court of Appeal, of the 4th of April, 1895, might be reviewed before Her Majesty the Queen in Her Court of Parliament, and that the said Order might be reversed, varied, or altered, and that so much of the Judgment entered at the trial of the Cause before the Honourable Mr. Justice Kennedy and a Common Jury in Middlesex as was a Judgment against the Petitioner might be set aside and Judgment entered for the Petitioner or a new trial had, or that the Petitioner might have such other relief in the premises as to Her Majesty the Queen in Her Court of Parliament might seem meet; as also upon the printed Case of William Cridge Flood and Walter Taylor, lodged in answer to the said Appeal: And whereas by an Order of this House of the 15th day of December 1896, it was Ordered that the said Appeal be re-argued on the 25th day of March 1897, and that the Judges do then attend; And whereas the said Appeal was accordingly heard on re-argument as well on Thursday the 25th, Friday the 26th, Monday the 29th, and Tuesday the 30th days of March last, as Thursday the 1st, and Friday the 2nd days of April last, in presence of the Judges; and a Question of Law was put to the Judges, who desired time to consider the same: And whereas on Thursday, the 3rd day of June last, the Judges delivered their Opinions on the said Question of Law to them proposed; And due consideration being had this day of what was offered on either side in this Cause:

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and another.

It is *Ordered* and *Adjudged*, by the Lords Spiritual and Temporal, in the Court of Parliament of Her Majesty the Queen assembled, That the said Order of Her Majesty's Court of Appeal of the 4th of April 1895, complained of in the said Appeal, be, and the same is hereby, Reversed, And that Judgment be entered for the Appellant; And it is further *Ordered*, That the Respondents do pay, or cause to be paid, to the Appellant the Costs incurred by him in the Courts below, including the costs of the trial, and also the costs incurred by him in respect of the said Appeal to this House, the amount of such last-mentioned Costs to be certified by the Clerk of the Parliaments: And it is further *Ordered*, That the Cause be, and the same is hereby, remitted back to the Queen's Bench Division of the High Court of Justice, to do therein as shall be just and consistent with this Judgment.